

23SMCV04247 23SMCV04247

County: los-angeles

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Case Number: 23SMCV04247 Hearing Date: June 26, 2026 Dept: 205

Superior Court of California

County of Los Angeles

Beverly

Hills Courthouse | Department 205

CHRISTOPHER FILKINS,

Plaintiff,

v.

VARLA SCOOTER, a California

Entity; and DOES 1 through 100, inclusive,

Defendants.

Case No.: 23SMCV04247

Hearing Date: 06/26/2026

[TENTATIVE] RULING RE:

PLAINTIFF'S REQUEST FOR DEFAULT JUDGMENT AS TO DEFENDANTS LEOPARD
TRANSNATIONAL INC. AND HIMIWAY INTELLIGENT TECHNOLOGY USA

BACKGROUND

This is a personal injury and products liability action. Plaintiff Christopher Filkins (Plaintiff) alleges that on January 25, 2022, Plaintiff was using a scooter in a manner intended by Defendant Varla Scooter (Varla) and DOEs 1 through 100 inclusive (DOEs) when the scooter failed unexpectedly and without warning when a piece came off the front of the scooter. (Compl., ¶¶ 7-8.) Plaintiff alleges that as a result, he was thrown to the pavement and suffered a fractured left clavicle, collapsed lung, and other severe and permanent injuries requiring multiple in-patient hospitalizations, surgeries to replace and remove hardware, bone grafting, and extensive past and future medical and rehabilitative care. (Compl., ¶ 8.)

RELIEF REQUESTED

Default judgment against both Defendants Leopard Transnational Inc. and Himiway Intelligent Technology USA (Defendants) for a total of \$9,378,870.14 each, which is comprised of: (1) \$378,025.24 in special damages, the total billed for medical treatment, hospitalizations, and other medical expenses related to the incident, (2) \$9,000,000 in general damages, including \$3,000,000 for pain, suffering, and inconvenience, \$3,000,000 for disfigurement and physical impairment, and \$3,000,000 for loss of enjoyment of life, and (3) \$844.90 for costs, including filing and motion fees, jury fees, service of process, electronic filing or service, and obtaining medical records. (Statement of Damages; Memorandum of Costs.)

ANALYSIS

Code of Civil Procedure section 585 sets forth the two options for obtaining a default judgment. First, where the plaintiff's complaint seeks compensatory damages only, in a sum certain which is readily ascertainable from the allegations of the complaint or statement of damages, the clerk may enter the default judgment for that amount. However, if the relief requested in the complaint is more complicated, consisting of either nonmonetary relief, or monetary relief in amounts which require either an accounting, additional evidence, or the exercise of judgment to ascertain, the plaintiff must request entry of judgment by the court. In such cases, the plaintiff must affirmatively establish his entitlement to the specific judgment requested. (Kim v. Westmoore Partners, Inc. (2011) 201 Cal.App.4th 267, 287.) Section 585

also allows for interest, costs and attorney fees, where otherwise allowed by law. (Code of Civ. Proc. 585(a).)

Multiple specific documents are required, such as: (1) form CIV 100, (2) a brief summary of the case; (3) declarations or other admissible evidence in support of the judgment requested; (4) interest computations as necessary; (5) a memorandum of costs and disbursements; (6) a proposed form of judgment; (7) a dismissal of all parties against whom judgment is not sought or an application for separate judgment under CCP § 579, supported by a showing of grounds for each judgment; (8) exhibits as necessary; and (9) a request for attorneys' fees if allowed by statute or by the agreement of the parties. (CRC Rule 3.1800.)

Here, Plaintiff has substantially complied with all requirements for a default judgment. Default was entered against both Defendants on March 6, 2026. Defendant Himiway Intelligent Technology, USA was served with the summons, complaint, and DOE amendment on March 20, 2025 via substituted service. Defendant Leopard Transnational Inc. was served with the summons, complaint, and DOE amendment on June 25, 2024 via substituted service. Plaintiff filed forms CIV-100 for both Defendants on March 6, 2026 with the required information without deficiency. Both Defendants were served with the Statement of Damages.

Plaintiff has also filed with both requests (1) the Declaration of Thomas S. Alch, Esq., which provides medical records, billing statements, and reports evidencing Plaintiffs medical treatments and related expenses, totaling \$378,025.24, and (2) the Declaration of Plaintiff Christopher Filkins, which describes the injuries sustained, surgeries underwent, trauma suffered, and effect on his work, life, and mental and emotional state following the incident, both of which provide a brief summary of the case. Finally, Plaintiff has filed a memorandum of costs and disbursements and a proposed form of judgment for both requests. No interest computations is necessary and neither interest nor attorney fees are sought against either Defendant.

However, Plaintiff has not dismissed all parties against whom judgment is not sought, nor for an application for separate judgment under CCP § 579. Plaintiff's complaint asserts each cause of action against Varla and DOEs 1-100, inclusive. Plaintiff filed DOE Amendments to the Complaint for DOEs 1 through 10. On September 9, 2025, the Court dismissed from the case

Defendants Varla Scooter, Shanghai Hidong Intelligent Technology Co., Ltd. (DOE 6), Hitech 826 London (DOE 5), Kentesh LTD (DOE 2), KBO Bike (DOE 1), Hitech (DOE 4), Hitech LTD (DOE 3), and Hubien Liu (DOE 9) without prejudice. As to Sam Ho (DOE 8), Plaintiff has filed a separate request for default judgment. However, Plaintiff has not dismissed DOES 11 through 100 from the case.

CONCLUSION AND
ORDER

For the foregoing reasons, the Court DENIES without prejudice Plaintiff Christopher Filkin's request for default judgment. Plaintiff should dismiss all parties against whom judgment is not sought or apply for a separate judgment under CCP § 579 supported by a showing of grounds for each judgment. The Order to Show Cause is Continued to September 23, 2026 at 8:30 a.m.

Dated:

Edward B. Moreton, Jr.

Judge of the Superior Court